

Court No. - 21

Case :- WRIT - C No. - 5272 of 2018

Petitioner :- Akhlak Ahmad @Sundar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Kumar

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel, who has accepted notice on behalf of the respondent Nos.2 to 4.

Petitioner has approached this court challenging the recovery proceedings initiated for recovery of a sum of Rs.7,32,296/- on the allegations that he has committed theft of electricity.

Learned counsel for the petitioner submits that neither any provisional assessment was made nor any final bill was raised and directly the recovery proceeding has been initiated against the petitioner, which is totally illegal. Learned counsel for the petitioner further submits that since the provisional assessment notice has not been served upon the petitioner as such, he could not file his objection.

However, Sri Chandan Agarwal, learned counsel for the respondent-corporation, on the basis of instructions has produced before us a copy of the assessment order dated 07.09.2016, which is taken on record.

We have considered the argument advanced by learned counsel for the parties and perused the record.

From a perusal of the provisional assessment notice dated 07.09.2016, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in ***Ashok Kumar and Vs. State of U.P. and others, 2008 (6) ADJ (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In view of the fact that provisional assessment dated 07.09.2016 in the name petitioner itself was not in accordance with law, we

are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned recovery citation dated 18.07.2017 (Annexure-5 to the writ petition) is hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objection of petitioner in the light of observations made in ***Ashok Kumar (supra)***.

Order Date :- 8.2.2018

Ashutosh